

25VECV00441 25VECV00441

County: los-angeles

Division: Civil Law and Motion

Department: T

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Case Number: 25VECV00441 Hearing Date: July 31, 2026 Dept: T

25VECP00441 El Pollon v Salazar

[TENTATIVE] ORDER: Respondent Leonardo Salazar's Motion to Dismiss Appeal is GRANTED as to the request for dismissal and entry of judgment in favor of Respondent Leonardo Salazar. Respondent Leonardo Salazar's request for attorneys' fees is to be considered by way of noticed motion.

Introduction

Respondent Leonardo Salazar (Plaintiff) moved to: (1) dismiss Appellant El Pollon SM Inc., dba El Pollo Sonora; Samuel Monreal (Defendants) Appeal of the Labor Commissioner's Order, Decision, or Award (ODA); (2) enter judgment in favor of Respondent; and (3) award Respondent's reasonable attorney's fees. The Labor Commissioner awarded Respondent \$156,859.93.

Discussion

Respondent

asserted that Appellant's appeal of the ODA should be dismissed because Appellant failed to timely file the appeal within the 10-day time-limit and failed to post an undertaking. The Notice of Appeal (NOA) is required to be "filed" 10 days after service of the ODA. (Lab. Code, sec. 98.2(a).) "The time for filing a notice of appeal from a decision of the Labor Commissioner is mandatory and jurisdictional. A late filing may not be excused on the grounds of mistake, inadvertence or excusable neglect." (Pressler v. Bren (1982) 32 Cal.3d 831, 837.) The Proof of Service (POS) attached to the ODA shows that the ODA was served via mail on June 4, 2025. (Jessenya Hernandez Decl., par. 2, Exh. 1.) The Court record

shows that the NOA was filed on July 3, 2025. The deadline to “file” the NOA expired on June 19, 2025, which includes the additional five days for mailing. Because the NOA was “filed” after the June 19, 2025[1], deadline, the NOA is untimely filed. The Court lacks jurisdiction over the NOA. Appellant argued that the NOA was timely “served” on June 20, 2026. However, service of the NOA is not relevant because the statute expressly requires “filing”. Further, Appellant fails to present any legal authority to support their contention that “service” of the NOA would make the NOA timely. Because Appellant cannot show that the NOA was timely “filed”, the motion to dismiss based upon the first argument is persuasive.

As to the second argument regarding the undertaking, the statute sets the posting of an undertaking as a “condition” to filing the appeal. Because an undertaking is a “condition” to filing the appeal, the posting must occur before the notice of appeal can be filed or no later than 10 days after service of the ODA. The posting requirement is jurisdictional. (Lab. Code, sec. 98.2(b); Palagin v. Paniagua Construction, Inc. (2013) 222 Cal.App.4th 124, 131-132.) The Court record does not reflect that Appellant posted an undertaking. Without the undertaking, the Court does not have jurisdiction to hear the NOA. Appellant argued that the posting is unconscionable and punitive. However, Appellant failed to present any legal authority to support the contention that the posting requirement requires the Court to consider the amount of the undertaking. Without any legal authority, the Court does not find Appellant’s argument to be persuasive. The motion to dismiss on the secondary argument regarding Appellant’s failure to post any undertaking.

Appellant’s arguments in the opposition sought to attack the parties’ settlement and the resulting ODA. However, arguments attacking the settlement/ODA are not relevant to the jurisdictional issue presented in the instant motion. The Court did not consider the merits of the settlement/ODA.

The motion to dismiss is GRANTED. Judgment of dismissal without prejudice shall be entered in favor of Respondent.

Respondent’s request for attorneys’ fees shall be made by way of noticed motion.

IT

IS SO ORDERED, _____ TO GIVE NOTICE.

[1] Respondent asserted

that the deadline to file was June 20, 2025, but Respondent's calculation of the date is incorrect.